

Exhibit A

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-17

BAKERLY, LLC

COMPLAINANT,

v.

SEAFRIGO USA, INC.

RESPONDENT.

DEPOSITION NOTICE

Respondent, Seafrigo USA, Inc. (“Seafrigo”), hereby gives notice that, pursuant to Federal Maritime Commission Rule 143(b)(6), it will take the deposition of Bakerly, LLC (“Bakerly” or “Complainant”), in the above case by oral examination on April 3, 2023, beginning at 9:30 a.m. Eastern Time via Zoom link.

In accordance with Rule 143(b)(6), Bakerly shall designate in writing one or more of its officers, directors or managing agents, or other person(s) who consent to testify on its behalf and, for each designee, Bakerly shall set forth the matters as to which he or she will testify.

The person(s) designated shall testify as to matters known or reasonably available to Bakerly.

Bakerly will be examined with respect to the following matters:

1. Invoices received by Bakerly from Seafrigo (“Invoices”) during the time period from November 1, 2020 through March 31, 2022.

2. Communications between Bakerly and Seafrigo regarding the Invoices.
3. Invoices which Bakerly contends contain erroneous calculations of amounts owed.
4. Invoices which Bakerly contends constitute “duplicate invoices.”
5. Seafrigo’s bill of lading terms and conditions.
6. Bakerly’s history of paying detention and demurrage charges assessed by Seafrigo.
7. Bakerly’s knowledge that Seafrigo was advancing money on behalf of Bakerly to detention and demurrage charges assessed by steamship lines and marine terminals.
8. Bakerly’s acknowledgment of its obligation to pay detention and demurrage charges.
9. Bakerly’s knowledge of detention and demurrage charges being assessed by steamship lines and marine terminals due to hindrances, including:
 - a. port closures due to storms;
 - b. port congestion arising from COVID;
 - c. nationwide congestion plaguing the ocean transportation industry in 2021 and 2022;
 - d. a shortage of chassis;
 - e. a shortage of gensets; and,
 - f. truckers’ resultant inability to pick up containers or return empty containers.
10. Payment by Bakerly of pass-through demurrage or detention charges assessed by steamship lines or marine terminal operators and/or representations by Bakerly that such payments made by Seafrigo would be reimbursed.

11. Bakerly's decision that it was no longer obligated to pay Seafrigo for detention and demurrage charges and when Bakerly first informed Seafrigo that it was unwilling to do so.

12. Invoices and payment of charges arising from weather-related port closures in New York or New Jersey during the period from November 1, 2020 through March 31, 2022

13. Negotiations of NSAs and the terms of NSAs between Bakerly and Seafrigo.

14. Bakerly's warehousing system between November 1, 2020 through March 31, 2022, including: a) lack of space to store containers; b) worker shortages at warehouses due to COVID; c) warehouses' ability to only accept a limited number of containers; d) efforts to divert containers to alternative locations; e) drivers' inability to timely unload containers at Bakerly's warehouses; f) warehouse's inability to coordinate receipt of containers.

15. Bakerly's termination of its relationship with warehouses including Lineage and termination of warehouses in Allentown, Pennsylvania.

16. Bakerly's recognition that the problems identified in Paragraphs 14-15 herein would result in detention and demurrage charges.

17. Bakerly's recognition that such detention and demurrage charges would have to be paid by Bakerly.

18. Bakerly's efforts to identify documents responsive to Seafrigo's document requests and to provide information responsive to Seafrigo's Interrogatories

The deposition will be taken by stenographic means before a notary public or other person authorized to administer oaths. The deposition will continue from day to day until concluded.

Dated: March 28, 2023

Respectfully submitted,



Brendan Collins
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DEPOSITION NOTICE

Pursuant to §§ 502.142-143 of the Rules of Practice and Procedure of the Federal Maritime Commission, Respondent Seafrigo USA, Inc. (“Seafrigo” or “Respondent”) hereby notices the deposition of the witness listed below. The deposition shall commence on April 3, 2023 at 3:30 p.m. Eastern Standard Time, except as otherwise agreed to by the parties. This deposition will be recorded by stenographic means and take place via Zoom link pursuant to FMC Rule 502.143(b)(4).

Witness	Party	Venue	Date
Yudith Quintero	Bakerly, LLC	Zoom link	April 3, 2023

Dated: March 28, 2023

Respectfully submitted,



Brendan Collins

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Pursuant to §§ 502.142-143 of the Rules of Practice and Procedure of the Federal Maritime Commission, Respondent Seafrigo USA, Inc. (“Seafrigo” or “Respondent”) hereby notices the deposition of the witness listed below. The deposition shall commence on April 3, 2023 at 5:30 p.m. Eastern Standard Time, except as otherwise agreed to by the parties. This deposition will be recorded by stenographic means and take place via Zoom link pursuant to FMC Rule 502.143(b)(4).

Witness	Party	Venue	Date
Jessica Zuccaro	Bakerly, LLC	Zoom link	April 3, 2023

Dated: March 28, 2023

Respectfully submitted,



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